

23STCV26364 23STCV26364

County: los-angeles

Division: Civil Law and Motion

Department: 732

Hearing date: 2026-07-15

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Case Number: 23STCV26364 Hearing Date: July 15, 2026 Dept: 732

Brandi Brooks v. PM Capital Management, et al.

Wednesday, July 15, 2026

CASE NUMBER: 23STCV26364

UNOPPOSED

Defendant PM Capital Management, LLC's Motion to Enforce Settlement

Facts: This is an action for employment retaliation and failure to pay wages. The First Amended Complaint ("FAC") alleges as follows. Plaintiff Brandi Brooks ("Plaintiff"), while an employee for Defendants PM Capital Management, LLC and Le Grand Restaurant ("Defendants"), had her hours reduced and her employment terminated after she complained of Defendants' repeated practice of calling her into work and then dismissing her because they had no work for her, which she believed to be illegal. (FAC ¶¶ 19–24.)

Procedural History: Plaintiff filed the Complaint on October 27, 2023, and filed the FAC on January 2, 2024, alleging nine causes of action:

Retaliation (Lab. Code § 98.6)

Retaliation (Lab. Code § 1102.5)

Wrongful Termination

Failure to Pay Wages

Minimum Wage Violation

Inaccurate Wage Statements

Waiting Time Penalties

Unfair Competition

PAGA

Plaintiff filed a motion to enforce settlement on February 10, 2026, now on calendar for October 19, 2026.

Defendant filed the present motion to enforce settlement on April 27, 2026. No opposition has been filed.

Analysis:

MOTION TO ENFORCE SETTLEMENT

Code Civ. Proc. section 664.6 states that:

If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If the parties to the settlement agreement or their counsel stipulate in writing or orally before the court, the court may dismiss the case as to the settling parties without prejudice and retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement.

“Section 664.6 permits the trial court judge to enter judgment on a settlement agreement without the need for a new lawsuit. [Citation.] It is for the trial court to determine in the first instance whether the parties have entered into an enforceable settlement. [Citation.] In making that determination, ‘the trial court acts as the trier of fact, determining whether the parties entered into a valid and binding settlement. [Citation.] Trial judges may consider oral testimony or may determine the motion upon declarations alone. [Citation.] When the same judge hears the settlement and the motion to enter judgment on the settlement, he or she may consult his [or her] memory. [Citation.]’ [Citation.]” (Osumi v. Sutton (2007) 151 Cal.App.4th 1355, 1359–1360.)

Defendant PM Capital Management, LLC (“Defendant”) moves to enforce a settlement with Plaintiff Brandi Brooks (“Plaintiff”). Defendant argues that per the settlement executed between the parties in March 2025, the present matter was to be dismissed with prejudice following each party’s delivery of an executed counterpart of the settlement agreement. (Levine Decl. ¶ 3; Exh. A.) Those counterparts having been executed, Plaintiff has not dismissed the action within the time identified. Defendant notes that the agreement contains a provision for continuing jurisdiction of this court to enforce the agreement under Code of Civil Procedure § 664.6, and thus that dismissal shall be without prejudice to Plaintiff’s now-pending motion to enforce the settlement agreement, now calendared for hearing in October 2026. (Motion at p. 3.)

Defendant’s description of the settlement agreement is accurate. (Levine Decl. Exh. A.) It provides for dismissal of this action within five days after execution of the agreement. (Id. at ¶ 2.) No such dismissal has been entered. Although Plaintiff has filed a motion to enforce the settlement based on Defendant’s alleged non-compliance with payment obligations, dismissal here need not prejudice Plaintiff’s ability to enforce the settlement through the motion presently on calendar, as this court may retain jurisdiction to enforce the terms of the settlement. Plaintiff has filed no opposition to the motion.

The motion is therefore GRANTED. This matter is ordered dismissed, with the court retaining jurisdiction to enforce the settlement agreement under Code of Civil Procedure § 664.6.

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Superior Court of California

County of Los Angeles

Department 732

BRANDI BROOKS,;

Plaintiff,

vs.

PM CAPITAL MANAGEMENT, et al.;

Defendants.

Case No.: 23STCV26364

Hearing Date: July 15, 2026

[TENTATIVE] RULING RE:

Defendant PM Capital Management, LLC's Motion to Enforce Settlement

Hearing on Defendant PM Capital Management, LLC's Motion to Enforce Settlement is GRANTED. This matter is ordered dismissed, with the court retaining jurisdiction to enforce the settlement agreement under Code of Civil Procedure § 664.6.

Defendant to provide notice.

Dated: July 15, 2026

Hon. Richard S. Kemalyan

Judge of the Superior Court